

21STCV16677 21STCV16677

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 21STCV16677 Hearing Date: August 27, 2026 Dept: F47

Dept. F47

Date: 8/27/26

Case #21STCV16677

MOTION TO QUASH;

MOTION TO
RECONSIDER &

MOTION TO
DISMISS

Motion filed on 2/13/26.

MOVING PARTY: Defendant Chatsworth Gardens Apartments,
LLC (specially appearing)

RESPONDING PARTY: Plaintiffs

Stephanie Hernandez; Aurora Gonzalez; Diamond Ayala, a minor, by and through her Guardian Ad
Litem Stephanie Hernandez;

Mia Ayala, a minor, by and through her Guardian Ad Litem Stephanie Hernandez
and Ezra Cardenas, a minor, by and through his Guardian Ad Litem Stephanie
Hernandez

NOTICE: ok

RELIEF REQUESTED: An order quashing service of summons; reconsidering the 2/9/26 ruling based on new facts and dismissing the action.

RULING: The motion is denied in its entirety.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiffs Stephanie Hernandez; Aurora Gonzalez; Diamond Ayala, a minor, by and through her Guardian Ad Litem Stephanie Hernandez; Mia Ayala, a minor, by and through her Guardian Ad Litem Stephanie Hernandez and Ezra Cardenas', a minor, by and through his Guardian Ad Litem Stephanie Hernandez (collectively, Plaintiffs) tenancy in an apartment complex owned, managed and/or operated by Defendant Chatsworth Gardens Apartments, LLC (Chatsworth Gardens). Plaintiffs claim that the apartment was infested with bed bugs and that they suffered personal injuries as a result.

On 5/4/21, Plaintiffs filed this action against various defendants, including Chatsworth Gardens. On 1/11/23, while this action was pending in Dept. 31 at the Spring Street Courthouse, Chatsworth Gardens filed a motion to quash which was scheduled for hearing on 9/1/23.

On 8/29/23, this case was found to have been erroneously filed as a "PI" case and all hearing dates, including the hearing on the motion to quash, were advanced and taken off calendar/vacated. (See 8/29/23 Minute Order). On 8/31/23, this case was reassigned to Dept. F47 at the Chatsworth Courthouse. (See 8/31/23 Minute Order).

On 9/28/23, Chatsworth Gardens refiled its motion to quash which was taken off calendar by the Court on 3/20/24 due to service issues with the motion. (See 3/20/24 Minute Order).

On 4/2/24, Chatsworth Gardens filed and served another motion seeking an order quashing service of summons.

The motion was originally scheduled for hearing on 11/8/24 but was continued by the Court to 11/13/24 at the 8/14/24 Trial Setting Conference. (See 8/14/24 Minute Order). No opposition to the motion was filed in relation to the 11/13/24 hearing date.

On 11/12/24 (the day before the initial 11/13/24 hearing date on the motion), Plaintiffs' attorney filed a declaration indicating that the hearing on the motion was miscalendared; therefore, the hearing on the motion was continued to 2/20/25 to allow Plaintiff to file and serve a complete opposition to the motion to quash. (See 11/14/24 Minute Order). On 2/20/25, the Court granted the motion to quash. (See 2/20/25 Minute Order – Ruling on Submitted Matter).

On 3/7/25, Plaintiffs filed and served a motion for reconsideration regarding the 2/20/25 ruling on the motion to quash. The motion for reconsideration was denied on 7/2/25. (See 7/2/25 Minute Order).

On 8/15/25, Chatsworth Gardens filed and electronically served another motion to quash and dismiss which sought an order quashing service of summons and dismissing the action. The motion was originally scheduled for hearing on 4/21/26. At the 9/4/25 Trial Setting Conference, the Court rescheduled the hearing on the instant motion to 2/9/26 and provided notice to counsel the same day. (See 9/4/25 Minute Order & Certificate of Service). On 2/4/26, six court days late and after a reply was due to be filed and served, Plaintiffs filed and electronically served an opposition to the motion. CCP 1005(b). On 2/5/26, Chatsworth Gardens filed and electronically served a reply to the late opposition. Despite the late filing of the opposition and reply, both documents were considered by the Court. See CRC 3.1300(d).

On 2/9/26, the Court found that the request to quash the service of summons was moot and denied the request to dismiss the action. (See 2/9/26 Minute Order). On 2/13/26, Chatsworth Gardens filed (served 2/12/26) the instant motion seeking an order quashing service of summons; reconsidering the 2/9/26 ruling based on new facts and dismissing the action. On 8/14/26, , Plaintiffs filed and served an opposition to the motion. Chatsworth Gardens has not filed a reply, which was due 8/20/26, to the opposition. See CCP 1005(b).

ANALYSIS

CCP 583.210 provides:

“(a) The summons and complaint

shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed.

(b) Proof of service of the summons shall be filed within 60 days after the time the summons and complaint must be served upon a defendant.”

CCP 583.250 provides:

“(a) If service is not made in an action within the time prescribed in this article:

(1) The action shall not be further prosecuted and no further proceedings shall be held in the action.

(2) The action shall be dismissed by the court on its own motion or on motion of any person interested in the action, whether named as a party or not, after notice to the parties.

(b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.”

The statutory periods for service are tolled while the “validity of service was the subject litigation.” CCP 583.240(c).

In its 2/9/26 ruling, the Court found that, pursuant to CCP 583.240(c), the three year period in which this action was required to be served after it was commenced on 5/4/21 was tolled during the time Chatsworth Gardens’ motions to quash and Plaintiffs’ motion for reconsideration were pending (e.g. the time the “validity of service was the subject of litigation”). (See 2/9/26 Minute Order). Since Chatsworth Gardens failed to address the tolling period in its motion filed on 8/15/25, the Court held that Chatsworth Gardens had failed to establish that the case qualifies for mandatory dismissal under CCP 583.250. Id.; (See also Motion to Quash filed 8/15/25, p.4:17-p.5:13).

Relying on CCP 1008(a), Chatsworth Gardens now asks the

Court to reconsider its ruling on the issue based on new or different facts which Chatsworth Gardens claims are “[t]he Court [sic] mistaken believed [sic] that plaintiff [sic] assertion that the 3 years had not lapsed and did not do its own calculation.” (See Motion, p.1:24-25, p.7:12-13). Contrary to Chatsworth Gardens assertion, the ruling was not based on Plaintiff’s assertion that the 3 year period had not lapsed, it was based on Chatsworth Gardens’ failure to even address the tolling period in its motion. In the instant motion, Chatsworth Gardens also fails to adequately address the tolling period.

Chatsworth Gardens fails to adequately explain or support with any authority its claim that:

“The time is more than three years when properly counted. From May 4, 2021 to January 11, 2023 no attempt at service was made and no motion to quash was filed. The Court ruling on the motion to quash February of 2025. At that point the issue was decided and all other efforts did not toll the statute. Therefore, from February 2025 to the date the motion to dismiss was filed in August brought the time up the 36 months, As of August 2025 no proof of service was filed. Therefore, this case should be dismissed and a more accurate count as to the days conducted.”

(See Motion, p.2:1-8).

Notably, Chatsworth Gardens has failed to conduct a more accurate count as to the days and merely makes unsupported assertions. The motion also inaccurately asserts that from the time this action was filed in May of 2021 to November of 2023 no service was claimed or contested. (See Motion, p.4: 1-2, p.4:6-7, p.5:15-16). However, Defendant filed its first motion to quash in January of 2023, not November of 2023. Defendant provides no authority to support its conclusion “all other efforts” after the Court’s 2/9/25 ruling granting the motion to quash did not toll the statute, especially since the Court previously ruled that the period in which Plaintiff’s motion for reconsideration of the Court’s order granting the motion to quash was pending tolled the 3 year period for service. (See 2/9/26 Minute Order).

Based on the foregoing, Chatsworth Gardens’ requests for reconsideration of the Court’s 2/9/26 ruling and to dismiss the action are

denied.

With regard to the request to quash service, the motion fails to address the 2/19/26 substituted service of the amended Summons and the Complaint along with additional documents on Chatsworth Gardens agent for service of process, Mark Kanter. (See Proof of Service of Summons filed 2/24/26; Amended Summons filed 2/18/26).

Finally, once again, Chatsworth Gardens inexplicably cites to CCP 1179.11(a) which the Court pointed out in its 2/9/26 ruling was repealed effective 9/30/24. (See Motion, p.2:16-18; 2/9/26 Minute Order).

CONCLUSION

The motion is denied.

The Court notes that in violation of CRC 3.1110(f)(4) Plaintiffs' counsel has failed to electronically bookmark the exhibits attached to the opposition. Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be refiled in compliance with the rule, papers not being considered and/or the imposition of sanctions.